Some of the above incidents were witnessed by Professor Madhu Dandavate, former Union minister for railways and finance and at that time Member of the Lok Sabha. He submitted his eyewitness account to the Justice Ranganath Misra Commission in the form of affidavits. On the night of 1 November, he was travelling by Rajdhani Express from Bombay to New Delhi. The train reached Mathura station in the early hours of 2 November. Nothing happened there as there was a large number of alert armed policemen.

> When the train reached Tughlakabad station on November 2 morning a large number of persons carrying iron rods, axes, crow-bars, etc., entered our train. They were searching for Sikh passengers in the train ... I found two Sikhs killed and thrown on the platform and then their bodies were set on fire ... The police standing on the platform made no effort to prevent either the killing or the burning of the Sikhs.

A Sikh railway employee who came out of the station master's office was also killed on the spot. The train halted there for four hours because of a rumour that a large crowd of Sikhs had gathered near Ashram Marg and they would stop the train and kill Hindu passengers. The train left only when the rumour was found to be false. Dandavate also stated in his affidavit that he discovered three more dead bodies of Sikhs in various compartments of the train. He was of the view that the murder of the Sikhs could have definitely been prevented if the police at Tughlakabad station had not remained passive spectators. Further, the police party standing at the foot of the overbridge turned out to be a group of tacit spectators and made no attempt to extinguish the fire when the two bodies were being burnt. According to one FIR, a request was also made to the police by the railway staff of Nangloi station to remove twelve dead bodies (of Sikhs) from there.

A total of seven FIRs were lodged in this connection. Forty-six trains were forced to make unauthorized halts, either at railway stations where they were not scheduled to stop, or outside stations. Justice Ranganath Misra observed that it was clear from these FIRs,